

now the Judge and the plaintiff knew the oath was not sufficient. And 2 Lutw. 935, goes upon that, and so did the case of *Philips v. Biron* (ante, 509) (4). Upon this foundation therefore the plaintiff must have judgment against all the defendants.

(1) *Rex v. Pullen*, Salk. 369, contra.

(2) All the reports of this case concur in making the Court incline to this judgment upon the first argument, but in Cunn. 127, Lord Hardwicke, in delivering the final judgment of the Court, rather expressed a contrary opinion, and in *Perkins v. Proctor*, 2 Wils. 385, the Court made a quære as to this dictum, for none could have justified the whole proceedings, they being coram non iudice, and a mere nullity. Vide *Hill v. Bateman*, ante, 711. *Shergold v. Holloway*, post, 1002.

(3) *Middleton v. Price*, post, 1184, S. P.

(4) Vide also *Parsons v. Lloyd*, 2 Black. 845, and in *Perkins v. Proctor*, 2 Wils. 382.

TRYON *vers.* CARTER.

Immaterial issue. Cunn. 71, 106, S. C. more full cited 1 Burr. 302.

A bond was conditioned for the payment of money on or before 5 December. The defendant pleaded payment on the 5 December, to which there was a replication (1): and a verdict for the plaintiff. But a repleader awarded, as being an immaterial issue, for it finds no breach of the condition, because it might be paid before the 5 December, and then the condition is performed: and it is not like a case where a condition is to pay upon such a day, for then there can be no legal payment till that day, an actual payment before being but in the nature of a deposit, till the day. But here it would be a legal payment at any day. Vide ante, 493, *Colborne v. Stockdale*. 1 Saund. 102. *Jernegan v. Harrison*, ante, 317.

(1) The replication as stated in Cunn. 71, and Bull. L. N. P. 162, was, "that the money was not paid on that day," which was ill, for the defendant having pleaded a strict performance, and not a collateral matter, the replication ought not only to have met the defendant's plea, but have shewn that the money was not paid at all. Vide *Fletcher v. Hennington*, B. R. 2 Burr. 994. 1 Black. 210, S. C. *Anon.* C. B. 2 Wils. 173. Bull. L. N. P. 162.

DOMINUS REX *vers.* ELLIS.

Where the mayor is to be sworn before the last mayor there must be his assent to the swearing, and his presence is not sufficient.

By the charter of New Romney the new mayor is to be sworn before his predecessor. At the election there were two candidates, Ellis and Whitwick; Ellis had the majority, notwithstanding which the mayor ordered Whitwick to be sworn; upon which the town clerk read the oath, and both Ellis and Whitwick had their hands upon the book, and kissed it. Upon trial of the issue, whether Ellis was duly sworn, it was ruled by Eyre C. J. de C. B. at Maidstone, that it was not a good swearing; for as it is to be the act of the mayor, his assent must go along with it: and that there is no difference between swearing by and before the mayor. And now upon motion for a new trial the Court were of the same opinion, and there was judgment against the defendant.

[995] HOWARD *vers.* POOLE.*

Separate creditor may come in under a joint commission of bankruptcy. Cunn. 111. Lex. Merc. Red. 498, S. C.

There was a joint commission against the defendant and his partner. And the plaintiff was a separate creditor of the defendant's, and arrested and held him to bail. But on motion he was discharged on common bail; the plaintiff being such a creditor, as might have come in under the joint commission (1).